



U.S. Department  
of Transportation

Pipeline and  
Hazardous  
Materials Safety  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

**MAR 8 2005**

DOT-E 14169

EXPIRATION DATE: April 30, 2005

1. GRANTEE: Allied Universal Corporation  
Miami, FL
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time, one-way transportation in commerce of Chlorine in a DOT Specification 106A500X tank car tank which has a leak from a hole, less than one-half inch in diameter, in the middle of its sidewall. The container is equipped with a Chlorine Institute Emergency "B-Kit" to prevent leakage during transportation. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.24(b), 179.300-12(b), 179.300-13(a) and 179.300-14.
5. BASIS: This emergency exemption is based on the application of Allied Universal Corporation dated March 7, 2005, submitted in accordance with § 107.117 and a determination that it is necessary for the protection of life and the environment.

**MAR 8 2005**6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| <b>Proper Shipping Name/<br/>Hazardous Materials Description</b> | <b>Hazard<br/>Class/<br/>Division</b> | <b>Identi-<br/>fication<br/>Number</b> | <b>Packing<br/>Group</b> |
|------------------------------------------------------------------|---------------------------------------|----------------------------------------|--------------------------|
| Chlorine                                                         | 2.3                                   | UN1017                                 | hazard<br>zone B         |

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification 106A500X tank car tank which has a leak from a hole in the middle of its sidewall. The tank car is equipped with a Chlorine Institute emergency "B-Kit" to prevent leakage during transportation.

b. The tank must be braced and blocked to prevent movement during transportation.

c. The tank will be transported on a flatbed motor vehicle operated by Transportation Services Unlimited, Inc., the exclusive transportation company for the Allied Universal Corporation.

d. The tank will be loaded on the motor vehicle at the Volusia County Florida Fire Department in Daytona Beach, Florida and will be transported to an Allied Universal Corporation's facility in Ft. Pierce, Florida.

e. An Allied Universal Corporation employee, trained in emergency response, must be in attendance during loading, unloading and transportation, to ensure that the kit device has been applied correctly and that the tank car tank is safe for transport.

8. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.9. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard the motor vehicle used to transport the tank covered by this exemption.

**MAR 8 2005**

10. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

11. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for

Hazardous Materials Safety -- OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.:

*for* 

Robert A. McGuire  
Associate Administrator for  
Hazardous Materials Safety

MAR 8 2005  
DATE

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Administration, Department of Transportation, Washington, D.C. 20590. Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: AM